

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 2, Honorable Amber Rosen, Presiding
Audrey Nakamoto, Courtroom Clerk

191 North First Street, San Jose, CA 95113
Telephone 408.882-2120

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

PROBATE LAW AND MOTION TENTATIVE RULINGS

DATE: March 27, 2025

TIME: 10:00 A.M.

*****NOTICE*****

**APPEARANCES IN DEPT. 2 MAY BE IN PERSON OR
REMOTE THROUGH MICROSOFT TEAMS**

PLEASE GO TO:

https://www.sccourt.org/general_info/ra_teams/video_hearings_teams.shtml to find the appropriate link.

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Prevailing party shall prepare the order by e-file, unless stated otherwise below

The court does not provide official court reporters for civil/probate law and motion hearings. See court website for policy and forms for court reporters at hearing

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LINE #	CASE #	CASE TITLE	RULING
LINE 1	25PR199026	<i>Conservatorship of Ho Cao</i>	See Tentative Ruling. Court will issue final order.
LINE 2			
LINE 3			
LINE 4			
LINE 5			
LINE 6			
LINE 7			

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LINE 8			
LINE 9			
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Calendar line 1**Case Names:** *The Conservatorship of Ho Cao***Case No.:** 25PR199026**INTRODUCTION**

On January 30, 2025, Petitioner Jacqueline Huynh (“Petitioner”) initiated this action by filing a petition for a conservatorship of the person for proposed conservatee Ho Van Cao, Petitioner’s former spouse. On February 24, 2025, Petitioner filed an amended petition. On March 12, 2025, Objector Huy Tan Cao (“Objector”) filed an objection to the amended petition.

Currently before the court is Objector’s motion to strike portions of the petition and supporting declarations. No opposition has been filed.

DISCUSSION

The court notes that the motion was untimely filed on March 12, 2025 for a hearing date of March 27, 2025. (See Code Civ. Proc., § 1005, subd. (b) [motions must be filed and served 16 *court days* before the hearing], italics added.) Additionally, the proof of service filed with the motion indicates that the motion was served on interested parties on March 3, 2025 via mail. Thus, service was also untimely. Code of Civil Procedure section 1005, subdivision (b) provides for service of motions 16 court days before the hearing. However, when motions are served by mail, an additional five calendar days are added for service of individuals residing in California and an additional ten calendar days for service of individuals residing in the United States but outside California. (Code Civ. Proc., § 1005, subd. (b).) Accordingly, service by mail was also untimely.¹

The court notes that the fact that Objector is proceeding in pro per does not excuse him from any applicable procedural rules. Pro per litigants are held to the same standard of knowledge as attorneys. (See *Kobayashi v. Superior Court* (2009) 175 Cal. App. 4th 536, 543; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 985 [“A doctrine generally requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation.”].)

Accordingly, the motion is ordered OFF CALENDAR. To the extent Objector seeks to have his motion heard, he must request a new hearing date and properly serve and file the motion.

¹ The court notes that most of the individuals served with the motion were served within California but one individual resides in Texas.